

25NNCV07782 25NNCV07782

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25NNCV07782 Hearing Date: August 27, 2026 Dept: P

[TENTATIVE] ORDER GRANTING

DEFENDANT'S MOTION TO RECLASSIFY TO LIMITED JURISDICTION

I. INTRODUCTION

On February 5, 2026, Plaintiff

Ashford Thomas ("Plaintiff") filed this premises liability action against

Defendants Alpha Beta Company dba Food 4 Less (erroneously sued as Food 4 Less

of California, Inc. dba Food 4 Less) ("Defendant"), and Does 1 to 10, inclusive

asserting causes of action for: (1) Negligence and (2) Premises Liability. The

Complaint alleges that Plaintiff was on a shopping aisle inside a Food 4 Less

store located in Pasadena when he slipped and fell due to a puddle of unknown

liquid in the aisle.

On July 21, 2026, Defendant filed

the instant motion to reclassify the action from an unlimited civil case to a

limited civil case. The motion is unopposed.

II. LEGAL STANDARD

Code of

Civil Procedure section 403.040 allows a plaintiff to file a motion for

reclassification of an action within the time allowed for that party to amend

the initial pleading. (Code Civ. Proc., § 403.040, subd. (a).) If the motion is

made after the time for the plaintiff to amend the pleading, the motion may

only be granted if (1) the case is incorrectly classified; and (2) the

plaintiff shows good cause for not seeking reclassification earlier. (Code Civ.

Proc., § 403.040, subd. (b).)

“[A]n action or special proceeding shall be treated as a limited civil case only if...(a) the amount in controversy does not exceed thirty-five thousand dollars (\$35,000)...(b) the relief sought is a type that may be granted in a limited civil case...[and] the relief sought, whether in the complaint, a cross-complaint, or otherwise, is exclusively of a type described in one or more laws that classify an action or special proceeding as a limited civil case or that provide that an action or special proceeding is within the original jurisdiction of the superior court.” (Code Civ. Proc., § 85.)

“To reclassify an action because it does not meet the jurisdictional amount involves evaluation of the amount fairly in controversy, not an evaluation of the merits of the claim. The trial court must reasonably determine that the verdict will “necessarily” fall short of the \$25,001 required for an unlimited civil case.” (Stern v. Superior Ct. (2003) 105 Cal.App.4th 223, 233.) Essentially, “the trial court looks to the possibility of a jurisdictionally appropriate verdict not probability.” (Id.) The “‘amount in controversy’ means the amount of demand, or recovery sought, or the value of the property, or the amount of the lien, that is in controversy in the action, exclusive of attorneys’ fees, interest, and costs.” (Code Civ. Proc., § 85(a).)

III. ANALYSIS

Defendant moves to reclassify this action from unlimited to limited jurisdiction, arguing that Plaintiff verified discovery responses establish that the amount in controversy does not exceed \$35,000. (Motion, pp. 3-5.)

Defendant asserts that Plaintiff has not sought or received any medical treatment for the injuries allegedly sustained in the December 9, 2024, incident. Defendant further points to Plaintiff’s verified discovery responses, in which Plaintiff claims approximately \$300 to \$400 in lost income from his work as an Uber driver and approximately \$600 to \$1,200 in lost income from freelance security guard work. Plaintiff also produced a single CVS receipt reflecting \$22.91 in over-the-counter pain medication. (Motion, p. 3; Exh. C.) Plaintiff otherwise denies past medical expenses, future medical care, future wage loss, and property damage. (Motion, p. 5.)

Defendant also notes that although Plaintiff initially sought punitive damages, the Court granted Defendant's motion to strike the punitive damages allegations on April 2, 2026. Plaintiff did not thereafter file an amended complaint. Thus, punitive damages no longer provide a basis for maintaining the action as an unlimited civil case. (Motion, pp. 3-5; Exh. B.)

Based on the record presented, the Court finds that the amount in controversy does not exceed \$35,000. Plaintiff received no medical treatment and identifies only minimal economic damages, consisting of approximately \$900 to \$1,600 in lost income and \$22.91 in over-the-counter medication. Plaintiff further denies past medical expenses, future medical care, future wage loss, and property damage.

Further, Plaintiff has not filed an opposition or presented evidence demonstrating that a verdict exceeding \$35,000 is reasonably possible. Thus, the Court GRANTS Defendant's motion to reclassify the action from unlimited to limited jurisdiction.

IV. CONCLUSION

The Court GRANTS Defendant's motion to reclassify action to limited jurisdiction.

Defendant
is to give notice.

Dated: August 27, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT